

The Central Electricity Authority (Terms and Conditions of Service of Chairperson and Other Members) Rules, 2005

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The Central Electricity Authority (Terms and Conditions of Service of Chairperson and Other Members) Rules, 2005

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The Central Electricity Authority (Terms and Conditions of Service of Chairperson and Other Members) Rules, 2005

Rule

THE-CENTRAL-ELECTRICITY-AUTHORITY-TERMS-AND-CONDITIONS-OF-SERVICE-OF-CHAIRPERSON-AND-OTHER-MEMBERS-RULES-2005 of 2005

Published on 24 November 2005

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The Central Electricity Authority (Terms and Conditions of Service of Chairperson and Other Members) Rules, 2005

Published vide G.S.R. 686(E), dated 24.11.2005, published in the Gazette of India, Extraordinary, Part II, Section 3(i), dated 24.11.2005

Last Updated 11th September, 2019 [8/462]

In exercise of the powers conferred by clauses (g) and (h) of sub-section (2) of section 176 read with sub-section (2) of section 185 of the Electricity Act, 2003 (

36 of 2003

), and in supersession of the Central Electricity Authority (Terms and Conditions of Chairman and Other Members) Rules, 1988, published in the Gazette of India, Part II, Section 3, sub-section (i), vide number G.S.R. 123, dated the 27th February, 1988, as amended from time to time, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement. - (1) These rules may be called The Central Electricity Authority (Terms and Conditions of Service of Chairperson and Other Members) Rules, 2005.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions. - (1) In these rules, unless the context otherwise requires, -

(a)

"Act" means the Electricity Act, 2003 (36 of 2003

);

(b)

"Authority" means the Central Electricity Authority established under section 71 of the Act;

(c)

"Chairperson" means the Chairperson of the Authority;

(d)

"Member" means a full-time member of the Authority, including Chairperson, where the context so requires;

(e)

"other Member" means a Member other than a full-time Member;

(2)

All other words and expressions used herein but not defined shall have the same meanings respectively assigned to them in the Act.

3.

Constitution of the Authority. - (1) Subject to the provisions contained under sub-section (5) of sections 70 and 73 of the Act, the Authority shall consist of the following:-

(a)

Chairperson

(b)

Member (Economic and Commercial)

(c)

Member (Grid Operations and Distribution)

(d)

Member (Hydro)

(e)

Member (Planning)

(f)

Member (Power Systems)

(g)

Member (Thermal).

(2)

The Chairperson and the Members of the Authority shall be appointed by an order either on deputation basis or on short-term contract basis, subject to the fulfilling of the eligibility conditions laid down in these rules.

4.

Eligibility and term of office of the Members. - (1) No person shall be eligible for appointment to the office of a Member, including the Chairperson, of the Authority unless he has held-

(a)

the post of Chief Engineer or equivalent [in level-14 in the pay matrix (Rs.144200 - 218200) or higher post or level of

pay] on a regular basis for at least five years under the Central Government or a State Government;
or

a post equivalent to that of a post mentioned above, under a State Electricity Board or a semi-Government organisation or a public sector undertaking or an autonomous body or a statutory body or a university or an Indian Institute of Technology or an Indian Institute of Management on a regular basis for at least five years; and

(b)

possesses a minimum of three years' filed experience in the relevant field;

Explanation. - For the purpose of the sub-rule, the expression "relevant field" means relevant field as defined in sub-section (5) of section 70 of the Act:

Provided that whenever a post of Member or any vacancy thereof is required to be filled up, area of specialisation or discipline shall be decided from amongst the categories listed under sub-section (5) of section 70 of the Act.

(2)

Subject to the provisions of sub-section (6) of section 70 of the Act, a Member shall normally hold office for a period not exceeding five years or till he attains the age of superannuation:

Provided that where the prescribed term of office of a Member as provided in sub-rule (2) expires before he attains the age of superannuation, the Central Government may extend the term of office of such a Member for a further period not exceeding the date of his superannuation in the Central Government.

(3)

A person shall cease to be Member of the Authority if he-

(a)

remains absent, without the prior permission of the Authority, from three consecutive meetings of the Authority; or

(b)

having been appointed on deputation, ceases to be in service of the respective State Government, Central Government or any other lending authority; or

(c)

has been convicted and sentenced to imprisonment for an offence which, in the opinion of the Central Government, involves moral turpitude; or

(d)

is an un-discharged insolvent.

5.

Resignation. - (1) The Chairperson of the Authority may resign from his office by giving notice of at least three months to the Central Government, in writing, and on such resignation being accepted by the Government, he shall be deemed to have vacated his office.

(2)

A Member of the Authority may resign from his office after giving notice of at least three months, in writing, to the Chairperson of the Authority who shall forward the same to the Central Government and on such resignation being accepted by the Government, he shall be deemed to have vacated his office.

6.

Pay and allowances and other terms of the Members including the Chairperson. - (1) The Chairperson of the Authority shall enjoy the status of ex officio , Secretary to the Government of India and shall carry the same pay and allowances as available to the Secretary to the Government of India.

(2)

A Member of the Authority shall enjoy the status of ex officio , Additional Secretary to the Government of India and shall carry the same pay and allowances as available to the Additional Secretary to the Government of India.

(3)

The other terms and conditions of service of Chairperson and Members, including entitlement of leave, leave salary, leave travel concession, travelling allowance, medical benefits, etc., shall be as are applicable to the Central Government officers of corresponding status.

(4)

The pension and leave salary contribution in respect of the Chairperson and Member(s), if they are on deputation to the Authority, shall be paid by the Authority to the respective lending authority in accordance with their rules.

7.

Allowances and fees payable to other Members. - The other Members shall receive such allowances and fees for attending the meetings of the Authority as may be determined by the Central Government.

8.

Power to relax. - Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, by order and for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

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